

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

202300575095PRWA: In the Matter of Margaret E Parenti
08/05/2026 in Department J6
Amended First and Final Account and Report

The following persons received notice "c/o" someone else: James Rabun, Barbara Ferguson, Mary Stoddard, Deborah Clausing, and John Pollock. CRC 7.51(a)2) provides: "A notice mailed to a person in care of another person is insufficient unless the person entitled to notice is an adult and has directed the party giving notice in writing to send the notice in care of the second person." The amended petition fails to state that these persons directed Petitioner in writing to send the notice in care of the second person. Discuss whether notice needs to be regiven to these persons.

It appears that Petitioner closed Bank of America accounts xx1302 and xx0006 during the administration. The balances in these accounts are included in Schedule 4 for Disbursements and in Schedule 2 for Receipts. This is incorrect. The transfers between accounts are neither disbursements nor receipts. (Hand & Hamilton, Fiduciary Accounting Handbook (Cont. Ed. Bar 2024) § 4.8, pp. 133-134.)

Further, the transfers should not be used to inflate receipts for purposes of fee calculations. The \$111.54 in gains in escrow is not true gains but the refund of prorated county property taxes. Thus, \$111.54 also should be deducted from the fee base. \$861,473.06 I&A + \$50,369.65 receipts + \$33,000 gains = \$944,842.71 fee base. Fees come to **\$21,896.85**.

The real property asset was sold on 11/28/23, more than 2 years prior to the filing of the petition for final distribution. What delayed the closing of this estate sooner? Petitioner and her attorney should show cause, explaining in detail, why their fees should not be reduced pursuant to Probate Code section 12205. Petitioner is directed to serve and file a verified supplement in response.

Without any discussion in the body of the petition and in the prayer only, Petitioner requests that the Court order the payment of \$19,500 to Lowthorp Richards for fees previously advanced to Attorney Robert Baskin, "in compliance" with a court order filed in 2025PRTR046046. The Court takes judicial notice of the 11/26/25 written order entered in Case No. 46046. This order contains no statement that this estate is to pay the \$19,500 in fees, or even that Lowthorp should pay. Accordingly, the Court will deny this request.

202300575095PRWA: In the Matter of Margaret E Parenti

The proposed final distribution of the estate to the trustee of the Joseph J. Parenti Family Trust dated April 24, 1979, as amended, is consistent with the terms of the will.